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Policy No.: CAA 5335407 18

Previous Policy No.: 5335407-17

Named Insured Name and Address	Agency Name and Address	08143
Once Upon A Tree Trunk, LTD dba Hudson Valley Restaurant Equipment 1210 Berne Road Kerhonkson, NY 12446-2948	(845)454-0800 Marshall & Sterling Inc 110 Main Street Poughkeepsie, NY 12601	

Issuing Company: Union Insurance Company

SCHEDULE OF COMMISSIONS**Policy No.: CAA 5335407-18**

Named Insured Name and Address	Agency Name and Address	08143
Once Upon A Tree Trunk, LTD dba Hudson Valley Restaurant Equipment 1210 Berme Road Kerhonkson, NY 12446-2948	(845)454-0800 Marshall & Sterling Inc 110 Main Street Poughkeepsie, NY 12601	

LINE OF BUSINESS**COMMISSION PERCENTAGE**

Commercial Auto

15.0%

* Please note that these percentages can be used to calculate your estimated commission for this policy. To find the actual commission amount that you will receive on this policy, please refer to your agency commission statement for this policy.

Issuing Company: Union Insurance Company
500 Plum St Suite 304
Syracuse, NY 13204

COMMERCIAL LINES POLICY COMMON POLICY DECLARATIONS

Renewal

Policy No.: CAA 5335407 - 18

Previous Policy No.: 5335407-17

Billing Method: Direct Bill

Payment Plan: 4A

Named Insured Name and Address

Once Upon A Tree Trunk, LTD
dba Hudson Valley Restaurant Equipment
1210 Berne Road
Kerhonkson, NY 12446-2948

Agency Name and Address

(845)454-0800
Marshall & Sterling Inc
110 Main Street
Poughkeepsie, NY 12601

08143

POLICY PERIOD

Policy Period: From 02/16/2026 to 02/16/2027 at 12:01 A.M. Standard Time at your mailing address shown above.

Business Description: Restaurant Equipment Wholesaler

Form of Business: Corporation

IN RETURN FOR YOUR PAYMENT OF THE PREMIUM AND SUBJECT TO ALL TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

THIS POLICY CONSISTS OF THE FOLLOWING COVERAGE PARTS FOR WHICH A PREMIUM IS INDICATED. THIS PREMIUM MAY BE SUBJECT TO ADJUSTMENT.

	Premium
Commercial Auto Coverage Part	\$ 2,831.00
NY Motor Vehicle Fee:	\$ 20.00
TOTAL:	\$ 2,851.00

FORMS APPLICABLE TO ALL COVERAGE PARTS

See attached "Schedule of Forms and Endorsements"

THESE DECLARATIONS, TOGETHER WITH THE COMMON POLICY CONDITIONS AND COVERAGES FORM(S) AND ANY ENDORSEMENT(S), COMPLETE THE ABOVE NUMBERED POLICY.

Countersigned: _____
(Date)

By: _____
(Authorized Representative)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Policy Number: **CAA 5335407 - 18**

SCHEDULE OF FORMS AND ENDORSEMENTS

The following Declarations, Coverage Forms, Conditions, and Endorsements are applicable to:

Commercial Common Policy

<u>Number</u>	<u>Edition</u>	<u>Description</u>
B IL DS 00	09-2007	Commercial Lines Policy Common Policy Declarations
IL 00 17	11-1998	Common Policy Conditions

Commercial Auto Coverage Part

<u>Number</u>	<u>Edition</u>	<u>Description</u>
CL IL 00 32 NY	02-2023	New York Nonbinary Gender Endorsement
CL IL 99 24	06-2015	U.S. Trade Sanctions
IL 01 83	08-2008	New York Changes - Fraud
IL 01 85	08-2008	New York Changes - Calculation of Premium

Issuing Company: Union Insurance Company

BUSINESS AUTO DECLARATIONS

Policy No.: CAA 5335407 - 18
Previous Policy No.: 5335407-17

ITEM ONE

NAMED INSURED AND ADDRESS	AGENCY NAME AND ADDRESS	08143
Once Upon A Tree Trunk, LTD dba Hudson Valley Restaurant Equipment 1210 Berne Road Kerhonkson, NY 12446-2948	(845)454-0800 Marshall & Sterling Inc 110 Main Street Poughkeepsie, NY 12601	

POLICY PERIOD

The Policy Period is from 02/16/2026 to 02/16/2027 12:01 A.M. Standard Time at your Mailing Address shown above.

Form of Business: Corporation

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

NY Motor Vehicle Fee: \$20

Premium Shown Is Payable At Inception \$ 2,831.00

Audit Period (If Applicable):

Endorsements Attached To This Policy:

See attached "Schedule of Forms and Endorsements"

Countersignature Of Authorized Representative

Name:

Title:

Signature:

Date:

Note: Officer's facsimile signatures may be inserted here, on the policy cover or elsewhere at the company's option.

Policy No.: CAA 5335407 - 18

ITEM TWO

Schedule Of Coverages And Covered Autos

This policy provides only those coverages where a charge is shown in the premium column below. Each of these coverages will apply only to those "autos" shown as covered "autos". **"Autos" are shown as covered "autos" for a particular coverage by the entry of one or more of the symbols from the Covered Autos Section of the Business Auto Coverage Form next to the name of the coverage.**

Coverages, Limits & Deductibles	Covered Autos	Premium
Covered Autos Liability Limit = \$1,000,000	1	\$ 2,486.50
Personal Injury Protection (Or Equivalent No-Fault Coverage) Limit = Separately Stated In Each PIP Endorsement Minus \$ <i>Item Three Schedule</i> Deductible.	5	\$ 105
Added Personal Injury Protection (Or Equivalent Added No-Fault Coverage) Limit = Separately Stated In Each Added PIP Endorsement	5	\$ 51
Property Protection Insurance (Michigan Only) Deductible =		\$
Auto Medical Payments Limit = \$5,000 Each Insured	7	\$ 5
Medical Expense And income Loss Benefits (Virginia Only) Limit = Separately Stated In Each Medical Expense And Income Loss Benefits Endorsement		\$
Uninsured Motorists Limit =		\$
Underinsured Motorists (When not Included In Uninsured Motorists Coverage) Limit =		\$
Supplementary Uninsured Motorists (New York Only) Limit = \$500,000 The maximum amount payable under SUM Coverage shall be the policy's SUM limits reduced and thus offset by motor vehicle bodily injury liability insurance policy or bond payments received from, or on behalf of, any negligent party involved in the accident as specified in the SUM endorsement.	6	\$ 70
Physical Damage Comprehensive Coverage \$ <i>Item Three Schedule</i> Deductible For All Perils For Each Covered Auto (A maximum deductible may also apply. Refer to Coverage Form for details.) See Item Four For Hired Or Borrowed Autos		\$
Physical Damage Specified Causes Of Loss Coverage \$ <i>Item Three Schedule</i> Deductible For All Perils For Each Covered Auto (A maximum deductible may also apply. Refer to Coverage Form for details.) See Item Four For Hired Or Borrowed Autos		\$
Physical Damage Collision Coverage \$ <i>Item Three Schedule</i> Deductible For Each Covered Auto. See Item Four For Hired Or Borrowed Autos		\$
Physical Damage Towing and Labor Limit = \$ <i>Item Three Schedule</i> For Each Disablement of a Private Passenger Auto, Light Or Medium Truck		\$
Premium For Endorsements		\$ 113
Estimated Total Premium*		\$ 2,831.00

*This Policy May Be Subject to Final Audit.

ITEM THREE - Schedule Of Covered Autos You Own

(Absence of a limit or deductible in a column for that vehicle means that the coverage does not apply)

Veh No.	DESCRIPTION			Original Cost New	Stated Amount
	Year	Model	VIN Number		
1	1986	Trail Trailer	1DA72C1N4FM008205	\$ 12,000	\$
2	1990	KENWORTH CONSTRUCTION T600	2XKAD29X3LM551586	\$ 35,000	\$
3	2013	ISUZU NRR	JALE5W160D7301179	\$ 53,668	\$

Veh No.	CLASSIFICATION				TERRITORY (Principal Garage Location)			
	Code	Radius (Miles)	Use	Size (GVW/GCW)				
1	68199	0-50	N/A		Kerhonkson	NY	Terr	159
2	23199	0-50	Commercial	0	Kerhonkson	NY	Terr	159
3	23199	0-50	Commercial	0	Kerhonkson	NY	Terr	159

COVERAGES						
Veh No.	Covered Autos Liability Limits	Personal Injury Protection		Property Protection Insurance (Michigan Only)	Auto Med Payments Limits	Medical Expense & Income Loss (VA Only)
		Ded	Add'l PIP			
1	1,000,000	FULL			5,000	
2	1,000,000	FULL			5,000	
3	1,000,000	FULL			5,000	

PREMIUMS								
Veh No.	Covered Autos Liability Limits	Basic PIP	Add'l PIP	Property Protection Insurance (Michigan Only)	MCCA	ATPA	Auto Med Pay	Med Exp & Inc Loss (VA Only)
1	\$75.00	\$5	\$17				\$1	
2	\$864.00	\$50	\$17				\$2	
3	\$1,160.00	\$50	\$17				\$2	

Veh No.	PHYSICAL DAMAGE COVERAGE				PHYSICAL DAMAGE PREMIUMS				
	Deductibles				Comp	Specified Causes Of Loss	Coll	Towing & Labor	Total Premium
	Comp	Specified Causes Of Loss	Coll	Towing & Labor Limit					
1					\$	\$	\$	\$	\$ 98.00
2					\$	\$	\$	\$	\$ 968.00
3					\$	\$	\$	\$	\$ 1,264.00

Policy No.: CAA 5335407 - 18

ITEM THREE - Schedule Of Covered Autos You Own (Continued)

SCHEDULE OF LOSS PAYEES

Veh No. Except For Towing, All Physical Damage Loss Is Payable To You And The Loss Payee
Named Below According To Their Interests In The Auto At The Time Of The Loss

ITEM FOUR

Schedule Of Hired Or Borrowed Covered Auto Coverage And Premiums

Covered Autos Liability Coverage - Cost Of Hire Rating Basis For Autos Used In Your Motor Carrier Operations (Other Than Mobile Or Farm Equipment)			
Covered Autos Liability Coverage	Estimated Annual Cost Of Hire For All States		Premium
Primary Coverage			
Excess Coverage			
Total Hired Auto Premiums:			
For "autos" used in your motor carrier operations, cost of hire means: 1. The total dollar amount of costs you incurred for the hire of automobiles (includes "trailers" and semitrailers), and if not included therein; 2. The total remunerations of all operators and drivers' helpers, of hired automobiles whether with a driver by lessor or an "employee" of the lessee, or any other third party; and 3. The total dollar amount of any other costs (e.g., repair, maintenance, fuel, etc.) directly associated with operating the hired automobiles whether such costs are absorbed by the "insured", paid to the lessor or owner, or paid to others.			
Covered Autos Liability Coverage - Cost Of Hire Rating Basis For Autos NOT Used In Your Motor Carrier Operations (Other Than Mobile Or Farm Equipment)			
Covered Autos Liability Coverage	State	Estimated Annual Cost Of Hire For Each State	Premium
Primary Coverage			
Excess Coverage	NY	If Any	\$110MP
Total Hired Auto Premiums:			\$110
For "auto" NOT used in your motor carrier operations, cost of hire means the total amount you incur for the hire of "autos" you don't own (not including "autos" you borrow or rent from your partners or "employees" or their family members). Cost of hire does not include charges for services performed by motor carriers of property or passengers.			

ITEM FOUR

Schedule Of Hired Or Borrowed Covered Auto Coverage And Premiums (Continued)

Cost Of Hire Rating Basis For Mobile Or Farm Equipment - Other Than Physical Damage Coverages					
Coverage	State	Estimated Annual Cost Of Hire For Each State		Premium	
		Mobile Equipment	Farm Equipment	Mobile Equipment	Farm Equipment
Covered Autos Liability - Primary					
Covered Autos Liability - Excess					
Personal Injury Protection					
Extraordinary Medical Benefits					
Auto Medical Payments					
Medical Expense Benefits (Virginia Only)					
Income Loss Benefits (Virginia Only)					
Total Hired Auto Premiums:					
Cost of hire means the total amount you incur for the hire of "autos" you don't own (not including "autos" you borrow or rent from your partners or "employees" or their family members). Cost of hire does not include charges for services performed by motor carriers of property or passengers.					

Rental Period Rating Basis - For Mobile Or Farm Equipment					
Coverage	Town And State Where The Job Site Is Located	Estimated Number Of Days Equipment Will Be Rented		Premium	
		Mobile Equipment	Farm Equipment	Mobile Equipment	Farm Equipment
Covered Autos Liability - Primary					
Covered Autos Liability - Excess					
Personal Injury Protection					
Medical Expenses Benefits (Virginia Only)					
Income Loss Benefits (Virginia Only)					
Auto Medical Payments					
Total Hired Auto Premiums:					

Policy No.: CAA 5335407 - 18

ITEM FOUR

Schedule Of Hired Or Borrowed Covered Auto Coverage And Premiums (Continued)

Physical Damage Coverage

Physical Damage Coverages - Cost Of Hire Rating Basis For All Autos (Other Than Mobile Or Farm Equipment)				
Coverage	State	Deductible	Estimated Annual Cost Of Hire For Each State (Excluding Autos Hired With A Driver)	Premium
Comprehensive		\$ Deductible For All Perils For Each Covered Auto (A maximum deductible may also apply. Refer to Coverage Form for details.)		
Specified Causes Of Loss		\$ Deductible For All Perils For Each Covered Auto (A maximum deductible may also apply. Refer to Coverage Form for details.)		
Collision		\$ Deductible For Each Covered Auto		
Total Hired Auto Premiums:				
For Physical Damage Coverages, cost of hire means the total amount you incur for the hire of "autos" you don't own (not including "autos" you borrow or rent from your partners or "employees" or their family members). Cost of hire does not include charges for any "auto" that is leased, hired, rented or borrowed with a driver.				

ITEM FOUR

Schedule Of Hired Or Borrowed Covered Auto Coverage And Premiums (Continued)

Physical Damage Coverage

Cost Of Hire Rating Basis For Mobile Or Farm Equipment - Physical Damage Coverages						
Coverage	State	Deductible	Estimated Annual Cost Of Hire For Each State (Excluding Autos Hired With A Driver)		Premium	
			Mobile Equipment	Farm Equipment	Mobile Equipment	Farm Equipment
Comprehensive		\$ Deductible For All Perils For Each Covered Auto (A maximum deductible may also apply. Refer to Coverage Form for details.)				
Specified Causes Of Loss		\$ Deductible For All Perils For Each Covered Auto (A maximum deductible may also apply. Refer to Coverage Form for details.)				
Collision		\$ Deductible For Each Covered Auto				
Total Hired Auto Premiums:						
For Physical Damage Coverages, cost of hire means the total amount you incur for the hire of "autos" you don't own (not including "autos" you borrow or rent from your partners or "employees" or their family members). Cost of hire does not include charges for any "auto" that is leased, hired, rented or borrowed with a driver.						

ITEM FIVE

Schedule For Non-ownership Covered Autos Liability

Named Insured's Business	Rating Basis	Number	Premium
Other Than Auto Service Operations, Partnerships Or LLCs	Number Of Employees	5	\$278
	Number Of Volunteers		\$
Auto Service Operations	Number Of Employees Whose Principal Duty Involves The Operation Of Autos		\$
	Number Of Volunteers		\$
	Number Of Partners (Active And Inactive) Or LLC Members		\$
Partnerships Or LLCs	Number Of Employees		\$
	Number Of Volunteers		\$
	Number Of Partners (Active And Inactive) Or LLC Members		\$
Total Non-ownership Covered Autos Liability Premiums:			\$ 278

ITEM SIX

Schedule For Gross Receipts Or Mileage Basis

Address Of Business Headquarters Location:			
Type Of Risk (Check One) ☐		Public Autos ☐	Leasing Or Rental Concerns ☐
Rating Basis (Check One) ☐		Gross Receipts (Per \$100) ☐	Mileage (Per Mile) ☐
Estimated Yearly (Gross Receipts Or Mileage):			
Premiums			
Covered Autos Liability		\$	
Personal Injury Protection		\$	
Added Personal Injury Protection		\$	
Auto Medical Payments		\$	
Medical Expense and Income Loss Benefits (VA Only)		\$	
Comprehensive		\$	
Specified Causes Of Loss		\$	
Collision		\$	
Towing and Labor		\$	

ITEM SIX

Schedule For Gross Receipts Or Mileage Basis (Continued)

When used as a premium basis:

FOR PUBLIC AUTOS

Gross Receipts means the total amount earned by the named insured for transporting passengers, mail and merchandise.

Gross Receipts does not include:

1. Amounts you pay to air, sea or land carriers operating under their own permits.
2. Advertising revenue.
3. Taxes collected as a separate item and paid directly to the government.
4. C.O.D. collections for cost of mail or merchandise including collection fees.

Mileage means the total live and dead mileage of all revenue producing "autos" during the policy period.

FOR RENTAL OR LEASING CONCERNS

Gross receipts means the total amount earned by the named insured for the leasing or renting of "autos" to others without drivers.

Mileage means the total live and dead mileage of all "autos" you leased or rented to others without drivers.

Policy Number: **CAA 5335407 - 18**

SCHEDULE OF FORMS AND ENDORSEMENTS

The following Declarations, Coverage Forms, Conditions, and Endorsements are applicable to:

Commercial Auto

<u>Number</u>	<u>Edition</u>	<u>Description</u>
B CA DS 03	07-2021	Business Auto Declarations
AI CA 75	05-2025	New York Supplemental Schedule
AI CA 57	07-2021	Commercial Automobile and Motor Carrier Expansion Endorsements - New York Amendment
AI CA 59	12-2022	Commercial Automobile Expansion Endorsement
CA 00 01	11-2020	Business Auto Coverage Form
CA 01 12	06-2022	New York Changes in Business Auto And Motor Carrier Coverage Forms
CA 02 25	06-2020	New York Changes - Cancellation
CA 04 20	01-2021	New York Supplemental Spousal Liability Coverage
CA 05 14	11-2018	New York Transportation Network Services Exclusion
CA 22 32	11-2018	New York Mandatory Personal Injury Protection Endorsement
CA 22 33	11-2018	New York Additional Personal Injury Protection
CA 22 60	04-1992	New York Optional Basic Economic Loss Coverage
CA 31 07	10-2025	New York Supplementary Uninsured/Underinsured Motorists Endorsement
CA 99 03	10-2013	Auto Medical Payments Coverage
CL CA 20 12	02-2015	Auto and Mobile Equipment Redefined - Physical Damage Only
IL N 002	11-2010	New York Rental Reimbursement Coverage Disclosure

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK SUPPLEMENTAL SCHEDULE

POLICY NO.: CAA 5335407 - 18

ITEM TWO: SCHEDULE OF COVERAGES AND COVERED AUTOS (CONTINUED)

Coverages	Coverage Limit	Premium
Mandatory Personal Injury Protection	\$ 50,000	\$ 105
Optional Basic Economic Loss	\$ 25,000	\$ 12
Additional Personal Injury Protection	\$ 100,000	\$ 39
Aggregate No-Fault Benefits Available	\$	
Maximum Monthly Work Loss	\$ 4,000	
Other Necessary Expenses (per day)	\$ 50	
Death Benefit	\$ 2,000	
Supplemental Spousal Liability Coverage*	Included in Bodily Injury Liability Limits.	\$ 63

*Supplemental Spousal Liability Insurance Coverage will only be included in your motor vehicle insurance policy if you affirmatively elect to purchase such coverage. Supplemental Spousal Liability Insurance provides bodily injury liability coverage and property damage coverage under a motor vehicle insurance policy to cover the liability of an insured because of the death of or injury to his or her spouse, even where the injured spouse must prove the culpable conduct of the insured spouse. If purchased, this coverage is included within the policy's bodily injury liability limits and does not increase the amount of those limits.

If you do not elect to purchase Supplemental Spousal Liability Insurance Coverage and the premium displayed above is \$0, then this coverage is not included in your motor vehicle insurance policy.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL PERSONAL INJURY PROTECTION (NEW YORK)

The Company agrees with the named insured, subject to all of the provisions, exclusions and conditions of the New York Mandatory Personal Injury Protection Endorsement, not expressly modified in this endorsement as follows:

SCHEDULE

Added Personal Injury Protection (Additional Limits)

Designation Or Description Of Vehicle	Without Additional Death Benefit				Additional Death Benefit	
	Total Additional Personal Injury Protection Limits	Monthly Work Loss	Other Expenses (Per Day)	Premium	Limit	Premium
1	\$ 100,000	\$ 2,000	\$ 25	\$ Included	\$ 0	\$ Included
2	\$ 100,000	\$ 2,000	\$ 25	\$ Included	\$ 0	\$ Included
3	\$ 100,000	\$ 2,000	\$ 25	\$ Included	\$ 0	\$ Included

Additional Personal Injury Protection

The Company will pay additional first party benefits to reimburse for extended economic loss on account of personal injuries sustained by an eligible injured person and caused by an accident arising out of the use or operation of a motor vehicle or a motorcycle during the policy period. This coverage only applies to motor vehicle accidents within the United States of America, its territories or possessions, or Canada.

Eligible Injured Person

Subject to the exclusions set forth below, an eligible injured person is:

- (a) The named insured and any relative who sustains personal injury arising out of the use or operation of any motor vehicle; or
- (b) The named insured and any relative who sustains personal injury arising out of the use or operation of any motorcycle while not occupying a motorcycle;
- (c) Any other person who sustains personal injury arising out of the use or operation of the insured motor vehicle while occupying the insured motor vehicle; or

- (d) Any other person who sustains personal injury arising out of the use or operation of any other motor vehicle (other than a public or livery conveyance) while occupying such other motor vehicle, if such other motor vehicle is being operated by the named insured or any relative.

Exclusions

This coverage does not apply to personal injury sustained by:

- (a) Any person while occupying a motor vehicle owned by such person with respect to which the coverage required by the New York Comprehensive Motor Vehicle Insurance Reparations Act is not in effect;
- (b) Any person while occupying, or while a pedestrian through being struck by, a motor vehicle owned by the named insured with respect to which additional personal injury protection coverage is not provided under this policy;
- (c) Any relative while occupying, or while a pedestrian through being struck by, a motor vehicle owned by such relative with respect to which additional personal injury protection coverage is not provided under this policy;

- (d) Any New York State resident other than the named insured or relative injured through the use or operation of a motor vehicle outside of New York State if such resident is the owner of a motor vehicle for which the coverage required by the New York Comprehensive Motor Vehicle Insurance Reparations Act is not in effect;
- (e) Any person while occupying a motorcycle;
- (f) Any person who intentionally causes his own personal injury;
- (g) Any person as a result of operating a motor vehicle while in an intoxicated condition or while his or her ability to operate the vehicle is impaired by the use of a drug (within the meaning of Section 1192 of the New York Vehicle and Traffic Law) except that coverage shall apply to necessary emergency health services rendered in a general hospital, as defined in section 2801(10) of the New York Public Health Law, including ambulance services attendant thereto and related medical screening. However, where the person has been convicted of violating section 1192 of the New York Vehicle and Traffic Law while operating a motor vehicle in an intoxicated condition or while his or her ability to operate such vehicle is impaired by the use of a drug, and the conviction is a final determination, the Company has a cause of action against such person for the amount of first party benefits that are paid or payable; or
- (h) Any person while:
 - (i) Committing an act which would constitute a felony, or seeking to avoid lawful apprehension or arrest by a law enforcement officer;
 - (ii) Operating a motor vehicle in a race or speed test;
 - (iii) Operating or occupying a motor vehicle known to him to be stolen; or
 - (iv) Repairing, servicing or otherwise maintaining a motor vehicle if such conduct is within the course of a business of repairing, servicing or otherwise maintaining a motor vehicle and the injury occurs on the business premises.
- (i) Any person who is injured while, pursuant to article 44-B of the Vehicle and Traffic Law, the insured motor vehicle is being used or operated by a transportation network company driver.

Additional First Party Benefits

Additional first party benefits are payments equal to extended economic loss reduced by:

- (a) 20 percent of the eligible injured person's loss of earnings from work, to the extent that the extended economic loss covered by this endorsement includes such loss of earnings;
- (b) Amounts recovered or recoverable on account of personal injury to an eligible injured person under State or Federal laws providing social security disability or workers' compensation benefits or disability benefits under article 9 of the New York Workers' Compensation Law, which amounts have not been applied to reduce first party benefits recovered or recoverable under basic economic loss;
- (c) Amounts recovered or recoverable by the eligible injured person for any element of extended economic loss covered by this endorsement under any mandatory source of first-party automobile no-fault benefits required by the laws of any State (other than the State of New York) of the United States of America, its possessions or territories, or by the laws of any province of Canada.

Extended Economic Loss

Extended economic loss shall consist of the following:

- (a) Basic economic loss sustained on account of an accident occurring within the United States of America, its possessions or territories or Canada, which is not recovered or recoverable under a policy issued in satisfaction of the requirements of article 6 or 8 of the New York Vehicle and Traffic Law and article 51 of the New York Insurance Law;
- (b) The difference between:
 - (i) Basic economic loss; and
 - (ii) Basic economic loss recomputed in accordance with the time and dollar limits set out in the declarations; and
- (c) An additional death benefit in the amount set out in the declarations.

Two Or More Vehicles Insured Under This Policy

The limit of liability under this endorsement applicable to injuries sustained by an eligible injured person while occupying, or while a pedestrian through being struck by, the insured motor vehicle shall be as stated in the Declarations for that insured motor vehicle. The limit of liability for injuries covered by this endorsement and sustained by an eligible injured person while occupying, or while a pedestrian through being struck by, a motor vehicle, other than the insured motor vehicle, shall be the highest limit stated for this coverage in the Declarations for any insured motor vehicle under this policy.

Arbitration

In the event any person making a claim for additional first-party benefits and the Company do not agree regarding any matter relating to the claim, such person shall have the option of submitting such disagreement to arbitration pursuant to procedures promulgated or approved by the Superintendent of Financial Services.

Subrogation

In the event of any payment for extended economic loss, the Company is subrogated to the event of such payments to the rights of the person to whom, or for whose benefit, such payments were made. Such person must execute and deliver instruments and papers and do whatever else is necessary to secure such rights. Such person shall do nothing to prejudice such rights.

Other Coverage; Nonduplication

The eligible injured person shall not recover duplicate benefits for the same elements of loss covered by this endorsement or any other optional first-party automobile or no-fault automobile insurance coverage.

If an eligible injured person is entitled to New York mandatory and additional personal injury protection benefits under any other policy, and if such eligible injured person is not entitled to New York mandatory personal injury protection benefits under this policy, then the coverage provided under this New York Additional Personal Injury Protection Endorsement shall be excess over such other New York mandatory and additional personal injury protection benefits.

When coverage provided under this endorsement applies on an excess basis, it shall apply only in the amount by which the total limit of liability of New York mandatory and additional personal injury protection coverage available under this policy exceeds the total limit of liability for any other applicable New York mandatory and additional personal injury protection coverage.

Subject to the provisions of the preceding three paragraphs, if the eligible injured person is entitled to benefits under any other optional first party automobile or no-fault automobile insurance for the same elements of loss covered by this endorsement, this Company shall be liable only for an amount equal to the proportion that the total amount available under this endorsement bears to the sum of the amounts available under this endorsement and such other optional insurance, for the same element of loss.